

Justification for an Exception to Fair Opportunity or to Use Brand-Name Restriction

Is this a brand-name justification? ☐ Yes ☒ No

Is this a Bridge Action as defined in the AF Bridge Action Reduction Plan? ☐ Yes ☒ No

Contracting Activity: 338th Enterprise Sourcing Squadron

Purchase Request / Local ID Number:

Program Name (and Program Element, if applicable): NAVY COPTR

Estimated Cost/Price of the Order (including options): 3,193,734

Type Program (see DAFFARS 5302.101 for definitions): ☐ PEO Program ☒ Operational ☐ Enterprise

Type of Determination: ☒ Individual ☐ Class Expires: Feb 28, 2026

Fair Opportunity Exception: FAR 16.505(b)(2)(i) (Check the applicable subparagraph below.)

☐ (A) ☐ (B) ☒ (C) ☐ (D) ☐ (E) ☐ (F) ☐ (G) Check this box to display the FAR 6.302 exceptions.

[Click here for instructions to complete the boxes below.](#)

(1) Contracting Activity:

338th Enterprise Sourcing Squadron

(2) Nature and/or description of the action being approved:

Single Task Order Award on A&MT Contract FA300222D0012 PoP 1 March 2025 thru 28 Feb 2026 to provide 6 classes under a FFP single CLIN

(3) Description of the supplies/services required to meet the agency's needs:

The United States Government (USG) has a requirement for Contractor Operated Primary Training - Rotary (COPT-R) to support the training of rotary wing initial pilot students. The Chief of Naval Air Training (CNATRA) is currently conducting a small group tryout to evaluate the effectiveness of utilizing commercial training opportunities for future helicopter training formal training units. This evaluation is critical to determine if commercial training can meet the rigorous standards and requirements of advanced flying training completed by the Navy. Navy is expecting to have their own contract for these services awarded in October 2025. Any follow-on services will be issued under that contract.

Training Requirements

Class Structure and Size:

The contractor shall provide training for up to six (6) classes.

Each class shall consist of eight (8) students.

The total number of students to be trained under this requirement is forty-eight (48).

Training Curriculum:

The training curriculum shall cover all aspects of rotary wing initial pilot training.

The curriculum shall be designed to prepare each student for a progress check utilizing the FAA-S-8081-15A, Section 1 profile.

The training shall include both ground school and flight training components.

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Training Schedule:

The training schedule for each class is as follows:

Class 1 (25-01): 04 March 2025 - 27 May 2025

Class 2 (25-02): 25 March 2025 - 17 June 2025

Class 3 (25-03): 15 April 2025 - 10 July 2025

Class 4 (25-04): 13 May 2025 - 07 August 2025

Class 5 (25-05): 10 June 2025 - 04 September 2025

Class 6 (25-06): 23 June 2025 - 17 September 2025

Training Facility:

The contractor shall provide a facility for the training.

The facility must be located within 20 nautical miles (NM) of Meachem Airfield, Fort Worth, Texas, as required in the initial task order.

The facility shall be equipped with the necessary classrooms, simulators, and rotary wing aircraft to conduct the training.

Instructor Qualifications:

The contractor shall provide qualified instructors with the necessary certifications and experience to conduct rotary wing initial pilot training and to conduct this small group tryout.

Instructors must be familiar with the FAA-S-8081-15A, Section 1 profile and capable of preparing students for the progress check.

Progress Checks:

The contractor shall conduct progress checks for each student utilizing the FAA-S-8081-15A, Section 1 profile.

Progress checks shall be conducted by qualified personnel to ensure that students meet the required standards.

Reporting and Documentation:

The contractor shall maintain accurate records of student progress and training outcomes.

The contractor shall provide regular reports to the USG on the status of the training program and the performance of the students.

Cost and Funding

The total cost for the COPT-R training requirement is \$3,193,734, based on the previous two executed task orders.

The training will be funded with Navy Operations and Maintenance (O&M) funds

(4) Identification of the exception to fair opportunity and the supporting rationale:

It is in the best interest of the government to issue the order on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order. The Chief of Naval Air Training (CNATRA) is currently conducting a small group tryout to evaluate the effectiveness of utilizing commercial training opportunities for future helicopter training formal training units. This evaluation is critical to determine if commercial training can meet the rigorous standards and requirements of advanced flying training completed by the Navy. Navy is expecting to have the contract awarded in October 2025.

The previous two task orders for Contractor Operated Primary Training - Rotary (COPT-R) were awarded competitively under the Aircraft and Maintenance Training (A&MT) Multiple Award Contract (MAC). The first two task orders were competitively awarded to SkyWarrior as the lowest-priced offeror. SkyWarrior was \$1M lower than the other offeror.

In the alternative, this requirement all meets the exception for these services are so urgent that providing a fair opportunity would result in unacceptable delays. It is in the best interest of CNATRA to ensure that the follow-on training is identical to the

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previous task orders as they ascertain at a micro level that the training meets the needs of advanced flying training completed by the Navy. Maintaining consistency with the same contractor is crucial for a valid evaluation. This includes using the same aircraft type, instructors, facilities, courseware, and type of instruction given. Any deviation from the established training parameters would compromise the integrity of the evaluation and potentially lead to inconsistent results. SkyWarrior has demonstrated exceptional performance in delivering the first two iterations of the training. Their familiarity with the specific training requirements, curriculum, and operational procedures ensures that they can continue to deliver high-quality training without the need for additional ramp-up time or resources. The Navy requires a minimum of six classes in order insure that their is no break in these vital services while they transition to their own contract, that is expected to be awarded in Oct 2025, the classes begin in Mar 2025 and end Sep 2025.

Awarding the follow-on order to a different contractor would result in substantial duplication of cost and effort. The effort would result in an estimated 910 man-hours to complete the source selection, equating to approx \$100,000 in cost to the Government. In addition, if we went outside the 20 miles we would have to PCS an new COR to the new awardee's training location. The new contractor would need to invest time and resources to reach the same level of understanding and capability as SkyWarrior leading to increased costs and potential delays. The training requirement must begin on March 4th, 2025. Conducting a new competitive solicitation at this juncture would result in unacceptable delays, jeopardizing the Navy CNATRA's training schedule and readiness. SkyWarrior is already prepared to commence the training on the required date, ensuring that there are no delays.

Utilizing SkyWarrior for the follow-on order ensures that the training program remains cost-effective and efficient. Their established infrastructure, experienced personnel, and proven track record minimize the need for additional costs and resources.

The economies of scale achieved by continuing with the same contractor further enhance the cost-effectiveness of the training program. Additionally, maintaining consistency with the same contractor allows CNATRA to accurately assess whether the small group tryouts meet the Navy's needs. This consistency is essential for determining if the commercial training opportunities can be scaled to meet the broader requirements of the Navy's helicopter training formal training units.

In conclusion, issuing the follow-on order on a sole-source basis to SkyWarrior is justified in the interest of economy and efficiency and the urgency of this requirement. The contracting office was only made aware of this requirement on 30 Jan 2025; therefore, not allowing enough time to complete a source selection under FAR 16.505 and meet the training date of 4 Mar 2025. If this action is not completed on time, it will have significant mission impact to the Navy pilot training pipeline. The consistency and continuity of training, proven performance, avoidance of duplication, time constraints, and overall cost-effectiveness support this determination. Ensuring that the follow-on training is identical to the previous task orders is essential for CNATRA to accurately evaluate the effectiveness of utilizing commercial training opportunities for future helicopter training formal training units

(5) Contracting Officer's determination that the anticipated cost to the Government will be fair and reasonable:

It has been determined that the anticipated cost of \$3,193,734 for the Contractor Operated Primary Training - Rotary (COPT-R) requirement is fair and reasonable. This determination is based on the consistency of the cost with previous competitively awarded task orders, comprehensive market research, and a detailed cost analysis. The contractor, SkyWarrior, has demonstrated exceptional performance and provides significant value, ensuring continuity and high-quality training outcomes.

(6) Other facts supporting the justification:

In addition to the unique qualifications of SkyWarrior and the results of the market research, several other factors support the use of other than full and open competition for the third iteration of the Contractor Operated Primary Training - Rotary (COPT-R) requirement:

Continuity of Training:

The continuity of training is critical to the success of the Navy CNATRA's mission. SkyWarrior has already successfully delivered the first two iterations of the training, ensuring that the training program is consistent and meets the required standards. Introducing a new contractor at this stage would disrupt the continuity of training, potentially leading to inconsistencies in the curriculum, training methods, and evaluation standards. This could negatively impact the quality of training and the readiness of the students.

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Proven Performance:

SkyWarrior INC has demonstrated exceptional performance in delivering the first two iterations of the COPT-R training. Their proven track record includes meeting all training objectives, maintaining high student satisfaction rates, and ensuring that students are well-prepared for the FAA-S-8081-15A, Section 1 progress check.

The contractor's familiarity with the specific training requirements, curriculum, and operational procedures ensures that they can continue to deliver high-quality training without the need for additional ramp-up time or resources.

Time Constraints:

The training requirement must begin on March 4th, 2025. Conducting a new competitive solicitation at this juncture would result in unacceptable delays, jeopardizing the Navy CNATRA's training schedule and readiness.

The time required to conduct a new competition, evaluate proposals, and transition to a new contractor would significantly impact the ability to meet the training start date. SkyWarrior is already prepared to commence the training on the required date, ensuring that there are no delays.

Cost Considerations:

Awarding the contract to a new contractor would result in substantial duplication of cost to the government. This includes costs associated with the transition, additional training for new instructors, and potential modifications to the training facility.

SkyWarrior's existing infrastructure, experienced personnel, and established training program minimize the need for additional costs, ensuring that the training is delivered in a cost-effective manner.

Geographic Proximity:

The training facility must be located within 20 nautical miles (NM) of Meachem Airfield, Fort Worth, Texas. SkyWarrior's partners facility meets this requirement, ensuring that the training is conducted in a convenient and accessible location for the students.

Identifying and transitioning to a new facility within the required geographic proximity would be challenging and time-consuming, further supporting the decision to continue with SkyWarrior.

Risk Mitigation:

The use of a sole-source award to SkyWarrior mitigates the risks associated with transitioning to a new contractor. These risks include potential disruptions to the training schedule, inconsistencies in training quality, and delays in achieving training objectives.

SkyWarrior's established processes, experienced instructors, and proven performance reduce the risk of any negative impact on the training program.

In conclusion, the combination of continuity of training, proven performance, time constraints, cost considerations, geographic proximity, and risk mitigation supports the use of other than full and open competition for the third iteration of the COPT-R training. Awarding the contract to SkyWarrior ensures that the Navy CNATRA's training requirements are met in a timely, cost-effective, and high-quality manner.

(7) Actions the agency may take to remove or overcome any barriers to increasing fair opportunity before any subsequent acquisition for the supplies or services:

If future small group tryouts are necessary, they will be competed amongst all contractors on the Aircrew Maintenance Training (AM&T) contract.

To ensure future acquisitions for Contractor Operated Primary Training - Rotary (COPT-R) are competitive, the agency will take the following actions:

Enhanced Market Research:

Conduct comprehensive market research to identify and engage with potential new sources capable of providing the required training services.

Industry Engagement:

Host industry days and outreach events to communicate upcoming requirements and encourage participation from a broader range of contractors.

Feedback and Improvement:

Solicit feedback from industry on the solicitation process and requirements to identify and address any barriers to competition.

Training and Development:

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Provide training to contracting personnel on best practices for promoting competition and reducing barriers in the acquisition process.
By implementing these actions, the agency aims to foster a more competitive environment for future acquisitions, ensuring the best value for the government.

(8) Program Manager's certification that supporting data is accurate and complete:

As evidenced by my signature below, I certify that any supporting data contained herein, which is my responsibility, is both accurate and complete.

(9) Contracting Officer's certification that the justification is accurate and complete:

As evidenced by my signature below, I certify that the justification is accurate and complete to the best of my knowledge and belief.

(10) Approving Official's determination that one of the circumstances in [FAR 16.505\(b\)\(2\)\(i\)](#) applies to the order.

As evidenced by my signature below, I hereby determine that the fair opportunity exception checked on page 1 applies.

REMOVING ROWS: CAUTION ([click here first](#))

NOTE: The text in the signature blocks below is editable, including the title.

Date 26 Feb 2025	A&MT - Program Manager Joseph Wilkerson, NH-03, DAF AFICC/AQT 520-869-5080	Signature	X
Date 26 Feb 2025	Contracting Officer Christopher D. Arnold, O-3, USAF 338 ESS/PKA, 210-652-7873	Signature	X
Date 26 Feb 2025	Local Legal Reviewer Ryan Springer AETC/JA, 210-652-9835	Signature	X
Date 26 Feb 2025	Competition Advocate DAVID E. JONES, Deputy Director AFICC/KT, 210-854-1713	Signature	X

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Instructions for Completing the Template IAW FAR 16.505(b)(2)(ii)(B)

- (2) State whether the action is a new order or a modification to an existing order. Identify the basic multiple award contract number and the order number for the current action. Also identify the type of the order/line items on the order (e.g., Firm Fixed price, Cost Plus Fixed Fee, etc.).
- (3) Specifically describe the supplies/services to be acquired including the price/cost and quantity of each item in the order and the total estimated value of the order. For services, state whether services are performance-based, and if not, provide rationale for not being performance based. State the delivery/performance schedule/period for the items under the order. Explain how the requirement/order fits under the scope of the basic multiple award contracts. (Note: The Contracting Officer must ensure that the order is issued within the period of performance and within the maximum value of the contract).
- (4) Include the appropriate exception from FAR 16.505 (b)(2) and the supporting rationale. FAR 16.505(b)(1)(i) requires the Contracting Officer to provide each awardee under a multiple award contract, a fair opportunity to be considered for each order exceeding \$3,000 unless a statutory exception applies. The specific exception that precludes the fair opportunity process for this acquisition is FAR 16.505(b)(2)(i)() [Insert A, B, C, D, or E]. If a brand name product description is being justified, use this section to explain why the particular brand name, product, or feature is essential to the Government's requirements and why other companies' similar products/services do not meet, or cannot be modified to meet, the agency's needs.

FAR 16.505(b)(2)(i)(A): "The agency need for the supplies or services is so urgent that providing a fair opportunity would result in unacceptable delays". When using this exception provide a detailed justification with supporting documentation that explains the exact urgency of the requirement and the mission impact if awarded to any other contractor. The user/customer typically provides this supporting information. Recommend attaching supporting documentation to the back of the document. General statements of urgency are not acceptable.

FAR 16.505(b)(2)(i)(B): "Only one awardee is capable of providing the supplies or services required at the level at the level of quality required because the supplies or services ordered are unique or highly specialized". When using this exception provide a detailed justification, with supporting documentation, as evidence of the "unique or highly specialized" nature of the procurement. The user/customer typically provides this supporting information. Supporting documentation may be attached to the back of the document. General statements are not acceptable.

FAR 16.505(b)(2)(i)(C): "The order must be issued on a sole-source basis in the interest of economy and efficiency as a logical follow-on to an order already issued under the contract, provided that all awardees were given a fair opportunity to be considered for the original order". When using this exception provide information on the previously competed order under this contract and detail the economies and efficiencies that will be obtained by going sole source for the follow-on order. The user/customer typically provides this supporting information. General statements are not acceptable.

FAR 16.505(b)(2)(i)(D): "It is necessary to place an order to satisfy a minimum guarantee."

FAR 16.505(b)(2)(i)(E): "For orders exceeding the simplified acquisition threshold, a statute expressly authorizes or requires that the purchase be made from a specified source."

Discuss the market research that was conducted by the user/technical team/contracting officer among the supplies/services of all awardees that resulted in the conclusion that a fair opportunity exception applied. The narrative in this section should provide a high level of confidence that the requirements of FAR 16.505(b)(1) and DFARS 216.505-70 could not be met. If no market research was conducted, state so and provide the rationale. If any other awardee expressed interest in fulfilling the requirement, but was not considered a potential source, explain why that awardee cannot provide the required supplies/perform the service.

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If the use of a brand name purchase description is being justified, the market research should include an analysis of any industry proposed alternative products or approaches to meeting the requirements. Additionally, the Government's efforts to identify as many potential sources as practicable offering the required brand name item(s) should be addressed.

(5) This paragraph needs to be tailored based on the types of CLINs in the order and the pricing arrangements on the basic multiple award contract. If the contract did not establish the price for the supply or service, the Contracting Officer must establish prices for each order IAW [FAR 15.4](#). The paragraph needs to describe the steps that will ensure that the prices/estimated cost of the order will be fair and reasonable. For example, even if firm-fixed prices were obtained under adequate price competition in the award of the multiple award contract, the Contracting Officer still needs to consider market conditions and other factors that may have changed since contract award and explain the basis in the determination that prices/costs are fair and reasonable prior to award of the order.

(6) Provide any other facts supporting the use of exceptions to the fair opportunity process.

(7) Include a statement of the actions, if any, to be taken to remove or overcome any barriers that led to the exception to fair opportunity before any subsequent acquisition for the supplies or services is made. If no actions are planned, so state and provide reasons.